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WHAT IS LEGAL DOCTRINE? ON THE AIMS AND METHODS OF LEGAL-DOGMATIC RESEARCH

Jan M. Smits



FACULTY OF LAW
MAASTRICHT UNIVERSITY

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Abstract

This paper seeks to obtain a better understanding of the aims and methods of doctrinal legal scholarship. It argues that legal doctrine serves the three main goals of description, prescription and justification and makes clear that many methodological choices have to be made in order to pursue these goals. One important finding is that legal doctrine reflects the normative complexity of the law: it offers detailed and sophisticated information about how to deal with conflicting arguments. Stripping the law from this practical knowledge by reducing it to general principles or policies, or by trading it in for economic or empirical analysis, is not helpful. In addition, the doctrinal approach is in many ways the necessary prerequisite for undertaking any other type of analysis of law (such as economic, comparative, empirical or behavioural work). All this contributes to carving out the proper place of legal doctrine in current legal scholarship.

Keywords: Methodology of legal research; Black letter law; Legal system; Comparison Europe-US; Law and...; New Private Law

What is Legal Doctrine? On the Aims and Methods of Legal-Dogmatic Research

Jan M. Smits*

1. Introduction

Doctrinal legal scholarship finds itself in an uncertain state. On the one hand, legal doctrine and a focus on the systematic elaboration of rules and principles of the positive law are no longer very much en vogue and are looked upon with suspicion. This is not only true for the United States,¹ but is increasingly also the case in various European countries.² On the other hand, this development has been lamented for being at odds with what legal scholarship should be really about. Even in American legal academia, so much characterised by theoretical and interdisciplinary work, there is a continuing concern about the decline of the doctrinal method, expressed by authors as diverse as Richard Posner and Harry T. Edwards.³ In Europe, despite fierce criticism, traditional doctrinal work still seems to be the most important type of research in which legal scholars engage. Many even see the ability to do quality doctrinal work as the most distinctive feature of a good legal academic or lawyer.⁴ The doctrinal approach has therefore been described as ‘mother’s milk to academic lawyers’⁵ as the method

* Professor of European Private Law and academic director of the Maastricht European Private Law Institute (MEPLI), Maastricht University. I would like to thank Anna Beckers, Anna Berlee, Rob van Gestel, Jaap Hage, Eve Meurgey and Daniel On for helpful comments. The final version of this paper will be published in Van Gestel/Micklitz/Rubin (eds.), *Rethinking Legal Scholarship*, forthcoming.

¹ See e.g. A.W.B. Simpson, ‘The Rise and Fall of the Legal Treatise: Legal Principles and the Forms of Legal Literature’, *University of Chicago Law Review* 48 (1981), 632 and Richard A. Posner, ‘The Decline of Law as an Autonomous Discipline: 1962-1987’, *Harvard Law Review* 100 (1987), 761.

² See for Germany already Ulrich Meyer-Cording, *Kann der Jurist heute noch Dogmatiker sein?*, Tübingen (Mohr) 1973 and for a recent overview Matthias Jestaedt, ‘Wissenschaft im Recht’, *JuristenZeitung* 69 (2014), 1; for the UK the oft-cited Tony Becher, *Academic Tribes and Territories: Intellectual Enquiry and the Cultures of Disciplines*, Buckingham (SRHE) 1989, 30: legal work would be ‘unexciting and uncreative’ and largely descriptive and Susan Bartie, ‘The lingering core of legal scholarship’, *Legal Studies* 30 (2010), 345; and for France Youssef Guenzoui, ‘Les querelles doctrinales’, *Revue Trimestrielle du Droit Civil* 2013, 47.

³ See resp. Posner, o.c., *Harvard LR* 100 (1987), at 777 (‘Disinterested legal-doctrinal analysis of the traditional kind remains the indispensable core of legal thought, and there is no surfeit of such analysis today.’) and Harry T. Edwards, ‘The Growing Disjunction Between Legal Education and the Legal Profession’, *Michigan Law Review* 91 (1992), 34, recently taken up again by Richard Brust, ‘The High Bench vs. the Ivory Tower’, *ABA Journal* 1 February 2012.

⁴ Cf. for shared modes of thinking among legal academics in France Christian Atias, *Epistémologie juridique*, Paris (Dalloz) 2002 and Philippe Jestaz & Christophe Jamin, *La doctrine*, Paris (Dalloz) 2004.

⁵ Christopher McCrudden, ‘Legal Research and the Social Sciences’, *Law Quarterly Review* 122 (2006), 632, at 634.

through which students learn to 'think like a lawyer'⁶ and even as the 'nerve centre' of legal science.⁷

The aim of this paper is to obtain a better understanding of the aims and methods of doctrinal legal scholarship. It has been observed time and again that despite the persistence of this type of research, we are insufficiently aware of its exact nature.⁸ There is little doubt that the doctrinal approach provides a separate mode of thinking about the law, but both its proponents and critics seems too little aware of its foundations. This calls for a better understanding of what doctrinal work in law is really about. The oft-heard counterargument that the only reason to do this would be for the benefit of outsiders, while legal academics themselves know very well what they are doing, cannot be accepted. Even if it were true that doctrinalists know what they do, this knowledge is only very implicit.⁹ Hence, I also do not believe that it is impossible to 'demystify' doctrinal reasoning.¹⁰

This is not the place to go at length into the reasons for the asserted decline of doctrinal work.¹¹ These reasons are complicated and not only have to do with changing perceptions of what legal research should be about, but also with changes in university governance.¹² It seems that doctrinal work is under attack from at least three different angles: it is considered too provincial from an international perspective, too narrow from an interdisciplinary perspective and not creative enough from an academic perspective. In other words: mainstream legal research should become less national, less one-sided and less old-fashioned. The consequence of giving in to these objections, leading to a decline of the importance of legal doctrine, will necessarily be that the intricate link between legal academia and legal practice weakens.

Although this may be self-evident, this paper does not argue that the doctrinal approach is the only relevant, or even the most important, way of doing legal research. Legal scholarship can consist of much more than only doctrinal work. However, the following does not only show that the doctrinal approach is in many ways the necessary prerequisite for undertaking any other type of

⁶ See for the US Edwards, o.c., *Michigan LR* 1992, at 58 and for Germany Claus-Wilhelm Canaris & Reiner Schmidt, 'Schlechte Juristen erkennt man an ihrer mangelnden Fähigkeit zur überzeugenden Lösung von Fällen', *Frankfurter Allgemeine Zeitung* 7 April 2011 (Nr. 82).

⁷ Walter Krebs, 'Die juristische Methode im Verwaltungsrecht', in: Eberhard Schmidt-Assmann & Wolfgang Hoffmann-Riem (eds.), *Methoden der Verwaltungsrechtswissenschaft*, Baden-Baden (Nomos) 2004, at 220.

⁸ See e.g. Edward L. Rubin, 'Legal scholarship', in: Dennis Patterson (ed.), *A Companion to Philosophy of Law and Legal Theory*, 2nd ed., Oxford (Wiley-Blackwell) 2010, 548, id., 'The Practice and Discourse of Legal Scholarship', *Michigan Law Review* 86 (1988), 1835 and Rob van Gestel & Hans-Wolfgang Micklitz, 'Why Methods Matter in European Legal Scholarship', *European Law Journal* 20 (2014), 292.

⁹ Rightly so: Terry Hutchinson & Nigel Duncan, 'Defining and Describing What We Do: Doctrinal Legal Research', *Deakin Law Review* 17 (2012), 83, at 99.

¹⁰ Cf. Geoffrey Samuel, 'Can Legal Reasoning be Demystified?', *Legal Studies* 29 (2009), 181.

¹¹ On which (for the US) Posner, o.c., *Harvard LR* 100 (1987), at 766, (for Germany) Matthias Jestaedt, 'Wissenschaft im Recht', *JuristenZeitung* 69 (2014), 1 and (for the Netherlands) Jan M. Smits, *The Mind and Method of the Legal Academic*, Cheltenham (Edward Elgar) 2012.

¹² One important indicator of the declining importance of doctrinal work is the low esteem that textbooks, case notes and legislation comments have in university funding models and in research assessment exercises such as the RAE and REF in the UK and the VSNU assessments in the Netherlands. Cf. Fiona Cownie, 'The Death of the Textbook Tradition', *European Journal of Legal Education* 3 (2006), 75, at 76.

analysis of law (such as economic, comparative, empirical or behavioural work), it is also claimed that the bad reputation of doctrinal work is undeserved. This requires scrutiny of what we mean by legal doctrine (section 2), as well as an investigation of its aims (section 3) and methods (section 4). Section 5 concludes.

2. Legal doctrine: an attempt at definition

It is surprising that, while the nature of comparative, economic and empirical research in law is widely discussed, this is not the case for doctrinal work.¹³ Although any jurist has some idea of what legal doctrine is about, it is more difficult to define it. Terms such as legal doctrine, black letter law, formalism, doctrinalism and legal-dogmatic research¹⁴ are all used to denote (the product of) a similar approach towards the law, be it with some national variations.¹⁵ It is probably best described as research that aims to give a systematic exposition of the principles, rules and concepts governing a particular legal field or institution and analyses the relationship between these principles, rules and concepts with a view to solving unclarity and gaps in the existing law. This doctrinal approach is largely identical among the various subfields of the law.¹⁶ Although originally developed for private law, it was taken over by scholars working in constitutional and criminal law (and other fields).¹⁷ Three elements in this description deserve separate attention.

First, it is an essential feature of the doctrinal approach that it adopts an internal perspective: the doctrinalist places himself *inside* the legal system. This was already noted by Oliver Wendell Holmes¹⁸ and repeated time and again by others in both the common law and the civil law tradition.¹⁹ The legal system is not only the subject of the inquiry, it also provides the normative framework for analysis. The separate discourse that results from this does not need anything outside of the law to be carried out.²⁰ Put otherwise: in the doctrinal approach the law is intelligible in its own terms. This remarkable feature of doctrinal work

¹³ Cf. Emerson H. Tiller & Frank B. Cross, 'What is legal doctrine?', *Northwestern University Law Review* 100 (2006), 517, arguing that the nature of legal doctrine has been 'woefully understudied.'

¹⁴ J.B.M. Vranken, 'Exciting Times for Legal Scholarship', *Recht & Methode in onderzoek en onderwijs* 2012, 42.

¹⁵ What German academics call *Rechtsdogmatik* is not entirely similar to what the French describe as 'la doctrine.' Cf. Nils Jansen, 'Rechtsdogmatik im Zivilrecht', *online Enzyklopädie zur Rechtsphilosophie* (2011), available at <www.enzyklopaedie-rechtsphilosophie.net>.

¹⁶ For a different view: Jestaedt, o.c., *JZ* 2014, at 7, who speaks of the 'three pillars architecture of jurisprudence', consisting of private, criminal and constitutional law.

¹⁷ Unfortunately with little interaction between the three: there is a need for more *intra-disciplinary* comparison. See also Jestaedt, o.c., *JZ* 2014, at 7.

¹⁸ Oliver Wendell Holmes, *The Common Law* (Barns & Noble) 2004, at 163: 'The business of the jurist is to make known the content of the law; that is, to work upon it from within (...).'

¹⁹ As recently in the report of the German Wissenschaftsrat, *Perpektiven der Rechtswissenschaft in Deutschland*, 2012, at 5, on which e.g. Stephan Lorenz, 'Forschung, Praxis und Lehre im Bericht des Wissenschaftsrats', *JuristenZeitung* 68 (2013), 704; Christian Atias, 'Ce que savent les jurists: les états du droit', *Revue Trimestrielle de Droit Civil* 2013, 315, no. 3; Pauline C. Westerman, 'Open or Autonomous?', in: Mark Van Hoecke (ed.), *Which Kind of Method for What Kind of Discipline?*, Oxford (Hart) 2011, 87.

²⁰ See e.g. Posner, o.c., *Harvard LR* 1987, 763.

allows legal scholars to speak as if they are judges or legislators and to address these official lawmakers on their own terms, suggesting alternatives for the outcomes they reach. It is also reflected in the law curriculum, which is essentially about teaching students to work as a judge, legislator or lawyer and in fact *make a decision* in concrete disputes. This 'unity of discourse'²¹ does not exist in other disciplines, where it would be unthinkable that the academic would make use of exactly the same terminology as the object of his study. Thus, the biologist describing the behaviour of the manatee does so in his own academic language and not in that of the manatee itself. Likewise, the sociologist studying the banking profession does not have to know how to make (or lose) money himself.²² It can well be argued that it is exactly this internal perspective that turns legal scholarship into an autonomous discipline: as soon as it starts to adopt an external (economic, sociological, historical, etc.) viewpoint, there is no longer a legal approach to the problem in question.²³

It must be emphasised that this does not mean that we cannot debate about the sources that should be taken into account in this internal discourse.²⁴ There will be consensus about the need to incorporate the 'official' sources of national legislation and case law, but not about the need to also involve e.g. European and international sources, private regulation, etc.²⁵ Many choices need to be made in order to select the relevant sources. It will be seen in section 4 that it is *inter alia* these choices that affect the extent to which doctrinal research is original or not.

Secondly, it is crucial for the doctrinal approach that the law is seen as a *system*. It would be a grave misunderstanding to regard legal doctrine as a mere description of existing legislation and case law.²⁶ It requires the organisation and reorganisation of the products of the institutions officially tasked with creating law into coherent principles, rules and concepts before we can speak of doctrine.²⁷ Or, as the Council of Australian Law Deans states: 'Doctrinal research, at its best, involves rigorous analysis and creative synthesis, the making of connections between seemingly disparate doctrinal strands, and the challenge of extracting general principles from an inchoate mass of primary materials.'²⁸ All relevant elements are thus fitted together into one working whole, resolving internal inconsistencies among seemingly contradictory materials. The law is

²¹ Rubin, o.c., *Michigan Law Review* 86 (1988), at 1859.

²² See Smits, *Mind and Method*, o.c., no. 10.

²³ See Ernest J. Weinrib, *The Idea of Private Law*, Cambridge Mass. (Harvard University Press) 1995.

²⁴ Cf. McCrudden, o.c., *LQR* 122 (2006), at 635.

²⁵ McCrudden, o.c., *LQR* 122 (2006), at 635 also looks at the potential use of economic or policy analysis as a matter of how open the system is. However, this seems to confuse *sources* and *methods*: if the official sources of law are investigated using economic analysis, this is no longer doctrinal work.

²⁶ Cf. Grant Lamond, 'Analogical Reasoning in the Common Law', *Oxford Journal of Legal Studies* 34 (2014), 567, at 581: 'law is not simply a body of rules: it is a body of reasoned doctrines that are interconnected and interrelated.'

²⁷ Cf. Martha Minow, 'Archetypical Legal Scholarship" A Field Guide', *Journal of Legal Education* 63 (2013), 65 and McCrudden, o.c., *LQR* 122 (2006), at 633: 'constructing logically coherent conclusions from elementary principles.'

²⁸ CALD Statement on the Nature of Legal Research (2005), <<http://www.cald.asn.au/docs/cald%20statement%20on%20the%20nature%20of%20legal%20research%20-%202005.pdf>>, at 3.

only a system because of the explicit choice to consider it as such, by treating principles, cases and concepts as signs of an internal intelligibility.²⁹

It will be seen in section 3 that this systematising approach can serve different goals, including the intelligible description of law and the steering of its application. Here it must already be accentuated that, again, doctrinalists have to make many choices regarding the method of systematisation. There is not one way of doing this.

The third essential feature of the doctrinal approach is that it systematises the *present* law.³⁰ It is surely possible to systematise law that is not applicable, such as the law of the past or a foreign law, but this would not qualify as legal doctrine. Crucial for the legal-dogmatic approach is that it is able to accommodate new developments such as recent case law and legislation against the background of societal change. This engagement with legal practice by reacting to changes to the law by legislators and courts turns legal doctrine into a living system that aims to achieve both constancy and change in the development of the law.³¹ This is well captured in the original meaning of the Latin term *doctrina*, which refers to knowledge or learning which is passed on from one generation to the next. This sets the doctrinal approach apart from the historical and comparative method, that are both geared towards the different goal of understanding how other legal systems than the positive law are best understood. This does not mean that past or foreign elements cannot be taken into account in further developing the system of present-day law, but only as part of this prevailing system.

Any well-trained legal academic or lawyer will recognise these three common traits of the doctrinal approach. But this does not mean that there is clarity about its aims and methods. As I have argued elsewhere, the proper reaction to the asserted lack of ‘academic level’ of traditional legal scholarship (as sometimes expressed by outsiders³²) should not be to give up this type of work, but to further develop its intellectual foundations. There is a dire need to do so, thus to be clear about aims and methods of the discipline. The doctrinal paradigm is intuitive, if not arcane and this has severe consequences for the position of law among the other disciplines practiced at universities that are better able to market their work to funding agencies and to the outside world.³³ The implicit knowledge that we have about legal doctrine should be made explicit.

²⁹ Cf. See Ernest J. Weinrib, ‘Legal formalism’, in: Dennis Patterson (ed.), *A Companion to Philosophy of Law and Legal Theory*, 2nd ed., Oxford (Wiley-Blackwell) 2010, 327, at 335 and (in Dutch) H.C.F. Schoordijk, ‘Het recht moeten wij niet denken als een systeem vooraleer wij er systeem in hebben gebracht’, *Nederlands Juristenblad* 2008, 1720.

³⁰ Cf. Rolf Stürner, ‘Die Zivilrechtswissenschaft und ihre Methodik’, *Archiv für die civilistische Praxis* 214 (2014), 7, at 11: ‘Allgemein gesagt liegt das Wesen rechtswissenschaftlicher Dogmatik in der systematischen Zuordnung des Einzelfalles zu Grundregeln und Grundprinzipien auf der Basis des geltenden Rechts.’

³¹ CALD Statement, o.c., at 3. See further below, section 3; Bartie, o.c., *Legal Studies* 30 (2010), at 350.

³² See on this Fiona Cownie, *Legal Academics: Cultures and Identities*, Oxford (Hart) 2004, 97 ff.

³³ See (arguing for the same) e.g. Hutchinson & Duncan, o.c., *Deakin Law Review* 17 (2012), at 85; Christian Bumke, ‘Rechtsdogmatik’, *JuristenZeitung* 69 (2014), at 642 (‘implizite Wissens’).

3. The aims of legal doctrine

What are the aims of the doctrinal approach towards law? I argue in the following that legal doctrine serves three main goals:³⁴ description, prescription and justification. These aims are closely interrelated and even reinforce each other. It will become clear in this section that because doctrine aims to describe the existing law, it also has a prescriptive voice and, through this, can legitimise newly proposed solutions.

3.1 Description

The first aim of legal doctrine is to describe the existing law (the *lex lata*) in a certain field (such as tort law or administrative law) or concerning a certain institution (such as contractual remedies or constitutional review) in a way that is as neutral and consistent as possible in order to inform the audience how the law actually reads.³⁵ Examples include the description of German private law in the *Münchener Kommentar zum Bürgerlichen Gesetzbuch*, of English constitutional law in Dicey's *An Introduction to the Law of the Constitution* and of American law in the big treatises. Von Savigny's monumental *System of the Modern Roman Law* (1840-1848) also belongs to this type of scholarship, as well as a majority of the articles published in today's European law journals.³⁶ These are all informed by a desire to place the prevalent sources of law (including legislation and case law) in a system and make this system intelligible to the reader. Jeremy Bentham designated this type of academic work as 'expository jurisprudence',³⁷ which nicely reveals the choices immanent in such systematisation: *how* the law is exposed is left to the doctrinalist, who is to decide how legislation and judicial decisions are fitted together into one working whole.³⁸

It is difficult to see how the law could do without this systematising description. It is legal doctrine which creates the shared framework of concepts and categories, without which a debate about law is not even possible.³⁹ It provides a language for discussion.⁴⁰ Thus the question of whether a security

³⁴ Rubin, o.c., in: Patterson (ed.), 2010, at 550, distinguishes between description, prescription and meta-description and -prescription.

³⁵ See also Smits, *Mind and Method*, o.c., no. 7. German scholars use the term 'durchdringen' (penetrate): see e.g. Bumke, o.c., *JZ* 69 (2014), at 645.

³⁶ A brief survey of the tables of content of the French *Revue Trimestrielle de Droit Civil* and the German *Archiv für die civilistische Praxis* for 2013 and 2014 reveals that a majority of the articles is about doctrinal issues.

³⁷ Jeremy Bentham, *An Introduction to the Principles of Morals and Legislation* (ed. J.H. Burns & H.L.A. Hart), Oxford (Clarendon Press) 1970, Ch. XVII, 21.

³⁸ Cf. McCrudden, o.c., *LQR* 122 (2006), at 634.

³⁹ Smits, *Mind and Method*, o.c., no. 45; Tiller & Cross, o.c., *Northwestern University Law Review* 100 (2006), 517: 'legal doctrine is the currency of the law'; Stephen D. Smith, 'In Defense of Traditional Legal Scholarship: A Comment', *University of Colorado Law Review* 63 (1992), 627, at 629: 'Indeed, to suggest that legal scholarship should be less obsessed with doctrine would be like suggesting that historians should not spend so much effort studying things that happened in the distant past, or that astronomers ought to worry more about earthly concerns (...).'

⁴⁰ See recently Marietta Auer, *Der privatrechtliche Diskurs der Moderne*, Tübingen (Mohr Siebeck) 2014; John C.P. Goldberg, 'Introduction: Pragmatism and Private Law', *Harvard Law Review* 125 (2012), 1640, at 1650; J.B.M. Vranken, *Algemeen deel*, Zwolle (W.E.J. Tjeenk Willink) 1995.

right in a movable asset ('pledge' or 'charge') must be registered or when constitutional review should be possible cannot be answered without a legal framework which defines these concepts. In this respect, doctrine *creates* the legal reality. While knowledge about physics is usually conveyed by way of mathematical formulas, the law is communicated through doctrine.⁴¹ Transfer of knowledge about the law is impossible without doctrine.

However, the underlying rationale of doctrinal description goes far beyond a mere theoretical interest. Legal doctrine can be seen as representing the normative complexity of the law: the thousands of rules and decided cases, each with their own nuances and organised as a system, show the many ways in which the law can deal with conflicting arguments. Doctrine thus reflects how subtle the law often can be and why a small change of the facts can lead to a wholly different outcome. To describe this is no easy task, and even if it may seem easy initially, a competent lawyer will *make* it difficult, not to keep himself busy but because he knows that subtle nuances are relevant. Singer put it like this: 'law is complicated because qualitative distinctions matter, and they matter at this level of detail.'⁴² The elaboration of the doctrinal system is therefore not an etheric activity unconnected to reality, but an essential part of the legal activity aiming to capture the subtleness of the law.⁴³ Only doctrine can grasp the law's complexity, not for nuance's own sake, but because it helps to understand and solve practical problems.⁴⁴ A reduction of the law to principles, underlying policies or arguments could not sufficiently express this complexity, as is now also acknowledged again in the recent American movement of the 'New Private Law.'⁴⁵

It can therefore be easily argued that the more complicated the law becomes, the greater the need for its systematic description. Doctrine rationalises and stabilises in order to keep the law intelligible.⁴⁶ It is no coincidence that in nineteenth century Germany the 'Juristenrecht' (as developed by e.g. Von Savigny and Windscheid) almost *had* to become a source of law in order for the law to function.⁴⁷ It was only through systematisation that it was possible to treat the like alike. This has remained an important function of legal doctrine: it helps to create coherence and, through this, to keep the law certain and predictable and make sure that similar cases are decided in the same way.⁴⁸

⁴¹ Cf. Edwards, o.c., *Michigan LR* 91 (1992), at 59: 'A lawyer is by definition skilled in the law, just as a doctor is skilled with the human body.'

⁴² Joseph William Singer, 'Normative Methods for Lawyers', *University of California Los Angeles Law Review* 56 (2009), 899, at 938.

⁴³ Smits, *Mind and Method*, o.c., no. 45.

⁴⁴ Cf. Goldberg, *Harvard LR* 125 (2012), 1652: 'being nuanced about legal concepts can help us think through practical problems.'

⁴⁵ Goldberg, o.c., *Harvard LR* 125 (2012), at 1650, arguing that legal doctrine and conceptualism are highly useful.

⁴⁶ Jansen, o.c., *online Enzyklopädie zur Rechtsphilosophie*: 'ordnende und stabilisierende Rekonstruktion.' Kelsen also saw description as a main aim of legal doctrine: Hans Kelsen, *Reine Rechtslehre*, 2nd ed., Wien (Verlag Österreich) 1960, at 72 ff.

⁴⁷ Raoul C. Van Caenegem, *Judges, Legislators and Professors*, Cambridge (Cambridge University Press) 1987. See on Germany Jan Schröder, *Recht als Wissenschaft*, 2nd ed., München (Beck) 2012.

⁴⁸ Stürner, o.c., *AcP* 214 (2014), 7, at 11: 'Ohne solche Systematik kommt kein Rechtssystem der modernen zivilisierten Welt aus, ist es doch nur so möglich, dem wesentlichen Grundelement menschlicher Gerechtigkeit volle Geltung zu verschaffen, nämlich der Gleichheit mit ihrem Gebot „Gleiches gleich, Ungleiches ungleich“ und Ähnliches adäquat modifiziert zu behandeln.'

This implies that to describe the system of the law in a new field,⁴⁹ or organise an existing field on basis of new principles,⁵⁰ can be a highly creative activity. It does not come as a surprise that to present the law as a coherent set of concepts, rules and principles by exposing contradictions, defining concepts and classifying rules and cases, has defined the history of legal scholarship.

3.2 Prescription

Legal doctrine is not limited to a mere description and understanding of the existing law. It also comprises of a search for practical solutions that fit the existing system best. Description is always complemented by a more *prescriptive* approach directed towards legal decision makers such as legislatures and courts and, to a lesser extent, the executive.⁵¹ There is a very good reason why legal doctrine can fulfil this role to establish the *lex ferenda*: it reflects the law's normativity. If law is about norms for human behaviour, doctrine articulates what these norms are. Doctrine is a source of information on how to behave.⁵²

The essence of prescriptive legal doctrine is that it is not primarily extra-legal considerations (such as economic or policy analysis) that guide the search for the best outcome, but the extent to which the outcome fits the system. Each argument must be led through the filter of the legal system before it can be accepted: the legal activity consists in *feeling out* the system. This meaning of legal doctrine was well captured by the Dutch law professor Herman Schoordijk who claims that the system forces the legal actor to 'bring his value judgments, that can never be based completely on the existing legal system, in harmony with judgments previously given in practice or theory.'⁵³ Dependent on whether the solution is accepted as binding law or not, this exercise can have a positive or a negative result.

This ability of doctrine to guide (judicial) decision making naturally does not mean that the outcome follows automatically from the system. The doctrinal approach is not similar to a mechanical application of determinate rules.⁵⁴ But the well-known criticism of Legal Realism and the Critical Legal Studies-movement⁵⁵ that a doctrinal system has no other value than to disguise underlying considerations that 'really' guide the decision maker is too far-

⁴⁹ For an example: Michael Martinek, *Moderne Vertragstypen*, 3 Vols., München (Beck) 1991-1993.

⁵⁰ An example is Peter Birks, *An Introduction to the Law of Restitution*, Oxford (Clarendon Press) 1985.

⁵¹ Cf. Minow, o.c., *J. Leg. Education* 63 (2013), 65.

⁵² See Smits, *Mind and Method*, o.c. as well as Atias, o.c., *RTD Civ* 2013, 315, no. 1: 'Riche et complexe, il se compose de multiples informations sur ce qui convient aux êtres humains dans leurs relations entre eux' and Goldberg, o.c., *Harvard LR* 125 (2012), at 650.

⁵³ H.C.F. Schoordijk, *Oordelen en vooroordelen*, Deventer (Kluwer) 1972, at 15.

⁵⁴ See Weinrib, in: Patterson (ed.), o.c., 327.

⁵⁵ See in detail Neil Duxbury, *Patterns of American Jurisprudence*, Oxford (Oxford University Press) 1995, 65 ff.

fetched.⁵⁶ Even though the doctrinal system will never provide certainty about how to decide, judges are in fact led by doctrine.⁵⁷

There is one exceptional element of prescriptive legal doctrine that merits separate attention.⁵⁸ Legal systematisation differs in one important respect from description in other disciplines: it influences the actual application of the law. Because legal academics work on a system that is also used in practice, important normative consequences can follow from their work. Anyone making use of a coherent system will propagate a change of the law if this fits in with the system itself. Koopmans describes this as follows:⁵⁹

'If biologists classify a whale as a mammal instead of as a fish, nothing changes in the world of facts (...). But if jurists qualify a barstool as a movable object and not as an immovable, they mean to say that in case of insolvency of the pub owner, it is not the bank that as mortgagee is entitled to the stool, but the brewery (...).'

Any decision to systematise the law in a certain way can thus have practical consequences. This means that, at least in the continental legal tradition, norms are produced autonomously within the legal system itself.⁶⁰ This view is today mostly associated with the work of Luhmann and Teubner,⁶¹ but it has always been an essential element of the doctrinal approach to law. In law as a system, the whole is greater than the sum of its parts.

3.3 Justification

The third, and least known, aim of legal doctrine is that it can also serve as a justification for the existing law. Succinctly put: if a rule does not fit into the system, it is not law. Here, the essence of the internal perspective comes out best: if the law is presented as a self-contained system of mutual reference, the validity of norms can be justified by reference to this system. In particular Weinrib argues that formalism is therefore also a theory of legal justification.⁶² He emphasises that formalism presupposes a view of law as an 'immanently intelligible normative practice'. This means that a legal system is already justified by its own coherence that will have to be permanently readjusted on the basis of

⁵⁶ Roberto M. Unger, *The Critical Legal Studies Movement*, Cambridge Mass. (Harvard University Press) 1986 and Duncan Kennedy, 'Form and Substance in Private Law Adjudication', *Harvard Law Review* 89 (1976), 1685.

⁵⁷ Tiller & Cross, o.c., *Northwestern University Law Review* 100 (2006), at 527, concluding that 'there is ample empirical support for a general claim that doctrinal choices in fact matter in judicial decisionmaking.'

⁵⁸ On what follows: Smits, *Mind and Method*, o.c., no. 9.

⁵⁹ T. Koopmans, 'Denken en doen in het recht,' in: *Juridisch stippelwerk*, Deventer (Kluwer) 1991, 67, at 68.

⁶⁰ No better term to describe this phenomenon than the German 'Systemproduktivität': cf. Jestaedt, o.c., *JZ* 2014, at 7.

⁶¹ Niklas Luhmann, *Law as a Social System*, Oxford (Oxford University Press) 2004 (orig. 1993); Gunther Teubner (ed.), *Autopoietic Law: A New Approach to Law and Society*, Berlin (De Gruyter) 1987.

⁶² Ernest J. Weinrib, 'Legal Formalism: On the Immanent Rationality of Law', *Yale Law Journal* 97 (1988), 949.

new judicial decisions and legislation: 'Justificatory coherence points not outward to a transcendent ideal but inward to a harmonious interrelationship among the constituents of the structure of justification'.⁶³ These elements are the principles, rules, cases and concepts that together express the coherence necessary for the legal system to function.

This idea of legal doctrine as an independent justification of the law is probably strongest in the Germanic legal tradition, where doctrine (in any event in private law) is seen as an activity independent from the work of democratic legislators and courts.⁶⁴ This allows to justify law through the system, turning law into an a-political entity. Just as the truths of physics or chemistry are not dependent on some political viewpoint, the doctrinal approach would offer a rational and objective account of the law. This is an echo of the Historical School and its 'law as science', but it also fits in with recent accounts of how private law is legitimised in practice: norms derive their validity not necessarily from the enactment by official institutions, but can also be based on their acceptance by legal practice.⁶⁵ Legal doctrine then allows to legitimise the new solution because it fits in with the system that is accepted and used by the legal community.

But one does not need to regard doctrine as a science in order to use it as a justification for the existing law. Systematic thinking is always based on the ideal of integrity: it requires legal solutions to be constructed in a way that best fits and justifies the law as a whole.⁶⁶ Indeed much high-quality doctrinal work is about justifying a given or proposed legal solution to a problem by testing its acceptability within the system. An informative example of recent date is the discussion about the binding nature of corporate social responsibility codes. Such codes contain voluntary guidelines that companies say they will respect with regard to labour, human rights and the environment. An important societal and legal question is to what extent such codes can be interpreted as containing enforceable obligations and, if so, towards whom. In the doctrinal approach this question must be answered by a meticulous investigation of how such obligations would fit in with the existing systems of contract and tort law.⁶⁷ This also illustrates the close connection between the prescriptive and the justificatory function of doctrine: if it follows from the doctrinal analysis that such guidelines should be binding, this conclusion can also be justified by reference to its acceptability within the system.

4. The methods of doctrinal work

Having identified three aims of the doctrinal approach towards law, the next question is which methods can be used to achieve these goals. It was already

⁶³ Weinrib, *The Idea of Private Law*, o.c., 339-340. See also Jaap Hage, 'The justification of value judgments', in: B. Akkermans et al (eds.), *Who Does What? On the allocation of regulatory competences in European private law*, Cambridge-Antwerp (Intersentia) 2015, 15, at 32.

⁶⁴ This is to a lesser extent also true for other civil law jurisdictions. See for France e.g. Jestaz & Jamin, o.c., 245.

⁶⁵ See Nils Jansen, *The Making of Legal Authority*, Oxford (Oxford University Press) 2010.

⁶⁶ Mathias Siems, 'Legal originality', *Oxford Journal of Legal Studies* 28 (2008), 147, at 150. The obvious reference here is to Ronald Dworkin, *Law's Empire*, Cambridge Mass. (Harvard University Press) 1986.

⁶⁷ See Anna Beckers, *Enforcing Corporate Social Responsibility Codes*, Oxford (Hart) 2015.

emphasised that there is little attention for the methodology of doctrinal research.⁶⁸ With a lack of an authoritative textbook on the legal-academic method or a fundamental discussion about it, it remains a 'methodological minefield'⁶⁹ or at best a 'black box'.⁷⁰ It has even become a truism that most jurists know how to do doctrinal work, but are not able to tell how they do what they do. The famous comparatist Ernst Rabel is even supposed to have said that a good jurist has his method, but does not speak about it.⁷¹ This raises the question whether we are able to 'unpack' the method of doctrinal reasoning implicit in much traditional legal research.⁷² Is it possible to uncover the choices that are usually only made implicitly? I do not claim that the following provides a full overview of the necessary choices, but it does give insight into some of the main options that remain usually hidden in the doctrinal literature as if there is only one doctrinal method.

The proper approach to identifying these choices is surely not a generic one, in which no distinction is made between the different types of activities involved in doctrinal work. Otherwise, one is not able to go beyond the stereotype that one does 'desktop research,' or is involved in 'rigorous analysis and creative synthesis, the making of connections between seemingly disparate doctrinal strands, and the challenge of extracting general principles from an inchoate mass of primary materials.'⁷³ Instead, I wish to identify three consecutive choices that need to be made when doing methodologically sound doctrinal work. Before I do so, some attention must be paid to identifying the appropriate research question.

It is not difficult to see what is the research question in doctrinal work. The three previously distinguished aims all lend themselves to serve as such: description, prescription and justification are all legitimate aims of legal doctrine.⁷⁴ This means that the researcher who wishes to describe or legitimise the existing law, or wants to indicate which solution fits the system best, can make use of the doctrinal approach. This does not mean that the doctrinal method is *the only one* to reach these goals. Thus, if the research question is how the French law on liability for animals reads, it is also possible to describe the

⁶⁸ See, however, recently (on German administrative law) Eberhard Schmidt-Assmann, *Verwaltungsrechtliche Dogmatik*, Tübingen (Mohr Siebeck) 2013, (on Dutch private law) the discussion between Pauline Westerman and Jan B.M. Vranken and Jaap Hage, 'The Method of a Truly Normative Legal Science', in: Mark Van Hoecke (ed.), *Methodologies of Legal Research*, Oxford (Hart) 2011, 19 and Rob van Gestel & Hans Micklitz, 'Revitalizing Doctrinal Legal Research in Europe. What about Methodology?', in: Ulla Neergaard et al (eds.), *European Legal Method: Paradoxes and Revitalisation*, Copenhagen (Djoef) 2011, 25 and the special issue of *Archiv für die civilistische Praxis* 214 (2014), 1.

⁶⁹ See Carmine Conte, 'From Only the "Bottom Up"? Legitimate Forms of Judicial Reasoning in Private Law', *Oxford Journal of Legal Studies* 35 (2015), 1, at 2.

⁷⁰ See Bumke, o.c., *JZ* 2014, at 645.

⁷¹ Wolfgang Fikentscher, *Methoden des Rechts in vergleichender Darstellung*, vol. 1, Tübingen (Mohr Siebeck) 1975, at 10.

⁷² See Hutchinson & Duncan, o.c., *Deakin Law Review* 17 (2012), at 99: 'Unfortunately the doctrinal method is often so implicit and so tacit that many working within the legal paradigm consider that it is unnecessary to verbalise the process.'

⁷³ CALD Statement, o.c., at 3.

⁷⁴ I do not rule out that the method can still to some extent be dependent on the aim of the research: when the aim is description, the test is more coherence; when it is prescription, it is more the acceptability of the solution and its consequences.

law in economic or sociological terms. Likewise, normative economic analysis could prescribe the desired outcome if one's question is how the law should read, while the legitimation of the positive law can also be found in the democratic legitimacy of legislature and courts that have created the main rules in this area. This defines the realm of legal doctrine as an important approach to the law, but certainly not the only one that is conceivable.

It is important to know whether the question being answered in doctrinal research is the same as the one being answered by practitioners, in particular judges. This is often implicitly assumed, as has been made clear by Vranken, arguing that the role model of the judge is also guiding the doctrinalist. It is indeed wrong to assume that the method of judicial application is the same as the academic method.⁷⁵ Judge and jurist may both be working in the same garden, but they have profoundly different tasks. While the judge primarily looks inductively for what he can use to solve the case under consideration (*taking* what he finds useful), the jurist has a more fundamental role to play in *developing* the system, ideally bound by methodological constraints. The scholar can freely choose his topic and make all kinds of recommendations for future law, while the judge cannot. Posner also contrasts these two distinct tasks,⁷⁶ while the German literature distinguishes between *Gebrauchsdogmatik* and *wissenschaftlicher Dogmatik*.⁷⁷ Practice and theory use the same language, but have a different purpose and serve a different audience.

The first methodological choice that academics face is about the materials to be used in developing the doctrinal system.⁷⁸ Most present-day doctrinal work is focused on the more recent official national sources (legislation and case law) within a confined area (such as contracts, family law, criminal procedure, or a part of it) without even making explicit that this is a choice at all. Why the focus on tort law or a specific part thereof⁷⁹ and not on developing an overall system of private law?⁸⁰ Why not involve also private regulation such as codes of conduct? Why not also consider law of supranational origin? The present tendency in Europe to look at law as a multi-layered⁸¹ or pluralist system is in itself already a choice *not* to integrate rules coming from different levels of governance. It keeps national private, criminal and constitutional law apart from the European rules. But why? Would it not be more fertile to bring these norms coming from

⁷⁵ Vranken, o.c., *R&M* 2012, at 43-44: 'legal researchers approach their work as judges do' and id., *Algemeen deel: een synthese*, Deventer (Kluwer) 2014.

⁷⁶ Richard A. Posner, 'In Memoriam: Bernard D. Meltzer', *University of Chicago Law Review* 74 (2007), 435, at 437: 'The messy work product of the judges and legislators requires a good deal of tidying up, of synthesis, analysis, restatement, and critique. These are intellectually demanding tasks, requiring vast knowledge and the ability (...) to organize dispersed, fragmentary, prolix, and rebarbative material.' See also Aleksander Peczenik, *Scientia Iuris* in: Enrico Pattaro (ed.), *A Treatise of Legal Philosophy and General Jurisprudence*, vol. 4, Dordrecht (Springer) 2005, at 2.

⁷⁷ See e.g. Rolf Stürner, 'Das Zivilrecht der Moderne und die Bedeutung der Rechtsdogmatik', *JuristenZeitung* 67 (2012), 10, at 11 ff. See also Hutchinson & Duncan, o.c., *Deakin Law Review* 17 (2012), at 107.

⁷⁸ On which Jestaz & Jamin, o.c., 218.

⁷⁹ Jan B.M. Vranken, 'Methodology of Legal Doctrinal Research', in: Van Hoecke (ed.), o.c., 2011, at 111: 'In contract and tort law alone, there are hundreds of systems (...).'

⁸⁰ For an effort to re-organise the law of contract, torts and restitution along common principles: P.S. Atiyah, *Promises, Morals, and Law*, Oxford (Oxford University Press) 1981, at 138 ff.

⁸¹ See for private law e.g. Beate Gsell, 'Zivilrechtsanwendung im Europäischen Mehrebenensystem', *Archiv für die civilistische Praxis* 214 (2014), 99.

different lawgivers under one systematic heading and is this not where the more creative doctrinal work can be done? A different choice was made in the Global Administrative Law-movement, in which universal principles of administrative law are sought by considering not only national laws, but also fundamental rights, values of good governance and private regulation.⁸² To continue, why not organise the law more in terms of particular types of parties, such as consumers, landowners and road drivers, or particular subject-matters, such as the environment and higher education?⁸³ Asking these questions also leads to a recently much debated issue: how to involve findings on the effect of law? Today everyone accepts that a true understanding of the law necessarily involves insight into its working.⁸⁴ But should this remain apart from doctrinal work, or can it be part of it? To sum up: a methodologically sound doctrinal description requires many choices to be made.⁸⁵

A related, more technical, question about the choice of materials is how to make the selection *within* each of the relevant sources. All case law or only that of the highest court? To what extent are explanatory memoranda to legislative texts part of the relevant materials? Should all literature written within one jurisdiction be looked at, or is it fine to limit oneself only to textbooks? What is the role of foreign literature?⁸⁶ The present selection of literature is often too random.

Once it is clear what the scope of the system and of the choice of materials should be, a second question emerges: which techniques are used to describe the existing law? Does one search primarily for common principles or is there also place for diversity? If so, what is the right mix between the two? What is the place for induction, deduction and synthesis, and which other legal argumentation techniques are used? What is the exact role for analogy⁸⁷ and for policy goals in developing the system? On basis of which criteria does one establish a principle and why is it that *these* resemblances are relevant and others are not? These are questions on which not even a debate takes place among doctrinalists.

The third choice to be made is which conception of a 'system' is used. Next to the elements that make up the system and the techniques used to describe it, one needs an idea of when this combination of elements and techniques actually forms a system. There is general consensus that the legal-doctrinal system refers to the 'inner system' of rules, concepts and principles

⁸² See e.g. Carol Harlow, 'Global Administrative Law: The Quest for Principles and Values', *European Journal of International Law* 17 (2006), 187.

⁸³ Lamond, o.c., *Oxford Journal of Legal Studies* 34 (2014), at 577.

⁸⁴ See, instead of many others, Roger Cotterell, 'Why Must Legal Ideas be Interpreted Sociologically?', *Journal of Law and Society* 25 (1998), 171.

⁸⁵ Cf. William Twining, *Blackstone's Tower: The English Law School*, London (Stevens & Sons) 1994, at 131: 'even the lowest forms of exposition involve interpretation, selection and arrangement.'

⁸⁶ Books that consider these questions are scarce. See e.g. Michael McConville & Wing Hong Chui (eds.), *Research Methods for Law*, Edinburgh (Edinburgh University Press) 2007; Terry Hutchinson, *Researching and Writing in Law*, 3rd ed., London (Thomson Reuters) 2010; D. Watkins & M. Burton, *Research Methods in Law*, London (Routledge) 2013. See also Marnix V.R. Snel, 'Source-usage within doctrinal legal inquiry: choices, problems, and challenges', *Recht & Methode in onderzoek en onderwijs* 2014-06.

⁸⁷ On analogy: Lamond, o.c., *Oxford Journal of Legal Studies* 34 (2014), 567.

that keeps the law together,⁸⁸ but such a system can be organised in many different ways. In particular in the German literature, there is therefore a wide-ranging debate about the requirements the materials must meet in order to qualify as a system.⁸⁹ This is discussion about, for example, the relationship between principles and rules, about how to solve conflicts among contradictory principles, about the role of concepts within the system, and about the degree of consistency and coherence that is required. Many different theories were developed in this respect⁹⁰ and we still lack an accurate comparative overview of all possible variations. It is not the aim of this paper to develop such an overview, only to make clear that many choices need to be made in a more explicit way when carrying out valuable doctrinal work.

The point made in the above is that methodology matters much more to legal-dogmatic research than is usually assumed. Only a better methodological awareness in standard legal scholarship will reveal the many choices immanent in carrying out doctrinal work.

6. Concluding remarks

This paper has shown that there is a dire need for a better understanding of doctrinal research. I identified three main aims and various methodological choices to be made when carrying out such research. This conclusion highlights two findings of this investigation.

Probably the most important finding from the above is that it is too easily forgotten that legal doctrine reflects the normative complexity of the law. It offers highly detailed and sophisticated information about how to deal with conflicting arguments. Stripping the law from this practical knowledge by reducing it to general principles or policies, or by trading it in for economic or empirical analysis, is not helpful.⁹¹ This does not mean that alternative approaches to the law are not relevant, but they all have to take the doctrinal description of the existing law as a starting point and are in that sense dependent on legal doctrine.⁹² Valuable economic, empirical or behavioural analysis of law would be impossible without first knowing what the existing law says *and* without using legal doctrine at the end as a justification for the proposed novel

⁸⁸ Karl Larenz, *Methodenlehre der Rechtswissenschaft*, 6th ed., Heidelberg (Springer) 1991, at 474.

⁸⁹ Claus-Wilhelm Canaris, *Systemdenken und Systembegriff in der Jurisprudenz*, 2nd ed., Berlin (Duncker & Humblot) 1983; Robert Alexy, *Theorie der juristischen Argumentation*, 7th ed., Frankfurt (Suhrkamp) 2012, 331, and (for a discussion of different positions) Karl Riesenhuber, *System und Prinzipien des Europäischen Vertragsrechts*, Berlin (De Gruyter) 2003, at 5 ff.

⁹⁰ See for the common law also Neil MacCormick, *Legal Reasoning and Legal Theory*, Oxford (Clarendon Press) 1978.

⁹¹ Goldberg, o.c., *Harvard LR* 125 (2012), at 1650: 'reality is complex and (...) it will not advance the cause of knowledge to assume that one comes to understand reality by stripping away superstructure to get to base.'

⁹² Cf. CALD Statement, o.c., at 3: 'If doctrinal research is a distinctive part of legal research, that distinctiveness permeates every other aspect of legal research for which the identification, analysis and evaluation of legal doctrine is a basis, starting point, platform or underpinning.'

solution that follows from these alternative approaches. In this respect, legal doctrine is the Alpha and the Omega of the law.⁹³

The second finding is that, despite the importance of legal-doctrinal work, its bad reputation is not entirely undeserved. Doctrinalists pay too little attention to the choices they make when creating or developing a legal system. Doctrinal research can be highly original,⁹⁴ but too often it is not. This calls for a change in attitude. It seems inevitable that legal doctrine must search for new foundations if it wants to compete with newer types of research in law. In the end, this is a matter of how attractive it is for academics to engage in doctrinal work. The above shows that the three main objections against doctrinal work (too provincial, too narrow and not creative enough⁹⁵) can be easily discarded, provided one is willing to take the methodological effort. Doctrinal research is worth it.

⁹³ See on this point looked at from a different perspective: Jan M. Smits, 'Law and Interdisciplinarity: on the Inevitable Normativity of Legal Studies', *Critical Analysis of Law* 1:1 (2014), 75.

⁹⁴ The same conclusion is reached by Siems, o.c., *OJLS* 28 (2008), 147, at 149 who describes different ways in which doctrinal work can offer something 'more.'

⁹⁵ See above, section 1.